FIRST AMENDMENT

TO

GROUND LEASE

FOR

REAL ESTATE PARCEL EC-2C

BETWEEN

CHICAGO TITLE LAND TRUST COMPANY, AS TRUSTEE UNDER TRUST AGREEMENT DATED

AS OF DECEMBER 1, 2007 AND KNOWN AS TRUST NO. 1114334, as Lessor

AND

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company, as Lessee

2052798

DATED AS OF: February 5, 2010

FIRST AMENDMENT TO GROUND LEASE

This FIRST AMENDMENT TO GROUND LEASE (this "Amendment") is made as of February 5, 2010 by and between **CHICAGO TITLE LAND TRUST COMPANY**, not personally, but solely as Trustee under a Trust Agreement dated as of December 1, 2007 and known as Trust No. 1114334 ("Lessor"), and **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company ("Lessee").

RECITALS

A. Lessor and Lessee entered into that certain Ground Lease dated as of December 1, 2007 ("Original Ground Lease"), a Short Form and Memorandum of which was recorded on January 31, 2008 in the Office of the Recorder of Deeds of Cook County, Illinois as Document No. 0803133011, and pursuant to which Lessee leased from Lessor the premises legally described on Exhibit A to the Original Ground Lease, being the same premises legally described on Exhibit A attached hereto.

B. As a result of construction defects and construction cost overruns related to the development of the Project, Lessee has experienced higher than anticipated costs and lower than anticipated revenues for the Project and has requested relief from the full Base Rent required by the Original Ground Lease.

C.

D. Lessor and Lessor's Beneficiary have agreed to grant certain relief to Lessee.

Lessor and Lessee wish to amend the Original Ground Lease to revise Section 3.1.1 to reflect their agreement regarding the Base Rent to be paid by Lessee.

Accordingly, in consideration of their mutual agreements set forth herein, Lessor and Lessee hereby agree as follows:

1. **Defined Terms**. All capitalized terms used but not defined in this Amendment shall have the same meanings as in the Original Ground Lease, unless otherwise expressly provided in this Amendment. In addition, from and after the date hereof, the term "Ground Lease" as used in the Original Ground Lease and this Amendment shall mean and include the Original Ground Lease, as amended by this Amendment.

2. **Section 3.1.1**. Section 3.1.1 of the Original Ground Lease is hereby deleted in its entirety and replaced with the following:

3.1.1 Initial Base Rent; Base Rent. Commencing as of the Commencement Date through and including the earlier of the date that the Project has been Substantially Completed and the Hockey Clubs are using the Project or September 1, 2008 (**"Construction Period"**), Lessee shall pay monthly, in advance, initial base ground rent in an amount equal to Two Thousand Eighty Three and 33/100 Dollars ($2,083.33) (**"Initial Base Rent"**). The monthly Initial Base Rent amount shall be prorated for partial months between the Commencement Date and end of the Construction Period. Commencing as of the next day following the end of the Construction Period (**"Base Rent Commencement Date"**), Lessee shall pay Base Rent, on a monthly basis, in

advance, on the first day of each and every month in the applicable amounts set forth in the following Schedule of Base Rent. Beginning on the Base Rent Commencement Date, Base Rent shall be payable at a rate of Sixteen Thousand Six Hundred Sixty-Six and 67/100 Dollars ($16,666.67) per month. The monthly Base Rent amount shall be prorated for partial months between the Base Rent Commencement Date and the beginning of the first Lease Year.

Lease **Year**

1 (9/1/08-8/31/09) 2
(9/1/09-8/31/10)
(9/1/09-10/31/09)
(11/1/09-12/31/09)
(1/1/10-8/31/10)

Schedule of Base Rent

Annual Base Rent

$200,000.04

Monthly Payment

$16,666.67

$90,000.04

$16,666.67

$1,666.67

$6,666.67

3 (9/1/10-8/31/11)

$80,000.04

$6,666.67

4 (9/1/11-8/31/12)

$185,712.12

$15,476.01

5 (9/1/12-8/31/13)

$238,567.92

$19,880.66

6 (9/1/13-8/31/14)

$237,500.04

$19,791.67

7 (9/1/14-8/31/15)

$237,500.04

$19,791.67

8 (9/1/15-8/31/16)

$237,500.04

$19,791.67

9 (9/1/16-8/31/17)

$237,500.04

$19,791.67

10 (9/1/17-8/31/18)

$237,500.04

$19,791.67

11 (9/1/18-8/31/19)

$272,000.04

		$22,666.67
12 (9/1/19-8/31/20)		
	$272,000.04	
		$22,666.67
13 (9/1/20-8/31/21)		
	$272,000.04	
		$22,666.67
14 (9/1/21-8/31/22)		
	$272,000.04	
		$22,666.67
15 (9/1/22-8/31/23)		
	$272,000.04	
		$22,666.67
16 (9/1/23-8/31/24)		
	$311,675.04	
		$25,972.92
17 (9/1/24-8/31/25)		
	$311,675.04	
		$25,972.92
18 (9/1/25-8/31/26)		
	$311,675.04	
		$25,972.92
19 (9/1/26-8/31/27)		
	$311,675.04	
		$25,972.92
20 (9/1/27-8/31/28)		
	$311,675.04	
		$25,972.92
21 (9/1/28-8/31/29)		
	$357,301.32	
		$29,775.11
22 (9/1/29-8/31/30)		
	$357,301.32	
		$29,775.11
23 (9/1/30-8/31/31)		
	$357,301.32	
		$29,775.11
24 (9/1/31-8/31/32)		
	$357,301.32	
		$29,775.11
25 (9/1/32-8/31/33)		
	$357,301.32	

		$29,775.11
26 (9/1/33-8/31/34)		
	$409,771.56	
		$34,147.63
27 (9/1/34-8/31/35)		
	$409,771.56	
		$34,147.63
28 (9/1/35-8/31/36)		
	$409,771.56	
		$34,147.63
29 (9/1/36-8/31/37)		
	$409,771.56	
		$34,147.63
30 (9/1/37-8/31/38)		
	$409,771.56	
		$34,147.63
31 (9/1/38-8/31/39)		
	$470,112.24	
		$39,176.02
32 (9/1/39-8/31/40)		
	$470,112.24	
		$39,176.02

Base Rent for the remainder of the Initial Term shall be determined in accordance with Sections 3.1.2, 3.1.3 and 3.1.4 below. Notwithstanding the foregoing, Lessee shall be entitled to an abatement of Base Rent in an amount that equals a total of One Hundred Thousand and 08/100 Dollars ($100,000.08) against the monthly installments of Base Rent paid during the Term commencing as of the Base Rent Commencement Date as an accommodation by Lessor with respect to the anticipated additional costs Lessee will incur to remediate the known soil conditions on Parcel EC-2C. The foregoing abatement shall be earned on a monthly basis by Lessee beginning as of the first day of the calendar month following Substantial Completion of the Initial Project, and Lessee shall, subject to the last sentence of this paragraph, be entitled to deduct from the monthly payments of Base Rent set forth in the Schedule of Base Rent the appropriate amount set forth in the following table:

Months

	Monthly Abatement	Total Annual Abatement
	$1,666.67	
9/1/08-8/31/09		$ 20,000.04
9/1/09-8/31/10	$1,666.67	
9/1/10-8/31/11		$ 20,000.04
9/1/11-8/31/12	$1,666.67	
9/1/12-8/31/13		$ 20,000.04
Total All Abatements	$1,666.67 $1,666.66	
		$ 20,000.04
		$19,999.92
		$100,000.08

In no event shall Lessee be entitled to such abatement if a Default exists under this Lease at any time such abatement is due and in no event shall Lessee be entitled to any abatement in excess of the total abatement set forth above, regardless of whether the costs to remediate any soil conditions exceed the amount of the abatement or Lessee incurs other additional unanticipated costs in connection with the construction of the Initial Project or for any other reason.

3. **Reaffirmation and Confirmation of Ground Lease**. All of the terms, conditions, agreements, obligations and provisions set forth in the Ground Lease as hereby amended, modified and supplemented shall be and they hereby are reaffirmed, ratified and confirmed in their entirety and incorporated herein by reference as if fully set forth herein.

4. **Governing Law**. This Amendment shall be governed by the laws of the State of Illinois, as may be amended from time to time, without giving effect to any choice or conflict of law provision or rule that would cause the application of the laws of any jurisdiction other than the State of Illinois.

5. **No Further Amendments**. Except as otherwise provided herein, in all other respects

the Ground Lease shall remain unchanged and in full force and effect.

6. **Executed <u>Counterparts</u>**. This Amendment may be executed in one or more counterparts, each of which shall constitute an original, but all of which, when taken together shall constitute only one legal instrument. This Amendment shall become effective when copies hereof (when taken together) shall bear the signatures of both parties hereto.

7. **Trustee Exculpation**. This Amendment is executed by Chicago Title and Trust Company, as Trustee as aforesaid, solely in the exercise of the power and authority conferred upon and vested in said trustee in its capacity as such trustee (and said trustee hereby warrants that it possesses full power and authority to execute this instrument), and it is expressly understood and agreed that nothing contained in this Amendment shall be construed as creating any liability on said trustee in its capacity as trustee, personally to comply with the terms of this Amendment, except for a failure to act when or as directed, all such liability, if any, being expressly waived by every person now or hereafter claiming any right under this Amendment. It is hereby agreed that said trustee shall be permitted to attach the form of exculpation customarily used by it to all documents, agreements, instruments, or other writings executed by it.

[Signatures on following pages]

WITNESS the due execution of this Amendment by Lessor as of the day and year first above written.

LESSOR:

STATE OF ILLINOIS

) SS.

COUNTY OF COOK

CHICAGO TITLE LAND TRUST COMPANY,
not personally, but solely as Trustee as aforesaid

By:
Printed Name:
Title:

ACKNOWLEDGMENT

the
President of **CHICAGO TITLE**

LAND TRUST COMPANY, not personally but solely as Trustee under a Trust Agreement dated December 1, 2007, and known as Trust No. 1114334, who is personally known to me to be the same persons whose names are subscribed to the foregoing instrument as such President appeared before me this day in person and acknowledged that he/she signed and delivered said instrument as his/her own free and voluntary act and as the free and voluntary act of said Bank, as Trustee as aforesaid, for the uses and purposes therein set forth.

GIVEN under my hand and notarial seal, this 5th day of February, 2010.

Notary Public

My Commission
expires:

WITNESS the due execution of this Amendment by Lessee as of the day and year first above written.

LESSEE:

Attest:

Printed Name:

Jeff Soman

Title:

PRESIDENT

NORTH SHORE ICE ARENA, LLC, an Illinois limited liability company

By: Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, sole member

By:

Printed Name Jim Griffin Its: PRESIDENT

ACKNOWLEDGMENT

STATE OF ILLINOIS

) SS.)

COUNTY OF COOK

This instrument was acknowledged before me on Feb 5. Jeb 5, 2010, by Jim Griffin and Jeff Soman as the Presidentand Treasurer, respectively, of Wilmette Hockey Association, Inc., an Illinois not-for-profit corporation, sole member of **NORTH SHORE ICE ARENA, LLC**, an Illinois limited liability company.

GIVEN under my hand and notarial seal, this 5th day of February, 2010.

My Commission expires: 5/01/2010

Jephen's A

Simon

Notary
Public

"OFFICIAL SEAL"
JOSEPHINE S SIMON
Notary Public, State of Illinois
My Commission Expires May
01, 2010

LEASEHOLD MORTGAGEE CONSENT TO FIRST AMENDMENT TO GROUND LEASE

The undersigned, **AMALGAMATED**
AMALGAMATED BANK OF
BANK OF CHICAGO,
CHICAGO, as trustee ("Amalgamated"), as mortgagee under that certain Leasehold Mortgage, Assignment of Leases and Rents, Security Agreement, and Fixture Filing made by **NORTH SHORE ICE ARENA**, **LLC**, an Illinois limited liability company ("Lessee") for the benefit of Amalgamated ("Leasehold Mortgage"), recorded on January 31, 2008 as Document Number 0803133012 in the Official Records of Cook County, Illinois, as may be amended, which encumbers the leasehold estate of Lessee, in Techny Parcel EC-2C legally described on Exhibit A attached hereto, created under and pursuant to that certain Ground Lease for Real Estate Parcel EC-2C dated as of December 1, 2007, by and between Lessee and Chicago Title Land Trust Company, not personally but as Trustee under a Trust Agreement dated December 1, 2007 and known as Trust No. 1114334 ("Lessor"), a Short Form and Memorandum of which was recorded on January 31, 2008 as Document No. 0803133011 in the Official Records of Cook County, Illinois, hereby consents to the First Amendment to Ground Lease dated as of February 5, 2010 (the "Amendment"), to which this consent is attached, and Amalgamated hereby subordinates the lien of the Leasehold Mortgage to the terms and provisions contained in the Amendment.

STATE OF ILLINOIS

) SS

COUNTY OF COOK

AMALGAMATED BANK OF CHICAGO

By:

Printed Name:

Its:

ACKNOWLEDGMENT

This instrument was acknowledged before before me on February 5, 2010, by

as

the

of **AMALGAMATED BANK OF CHICAGO**, who is personally known to me to be the same

whose name is subscribed to the foregoing instrument as such

person

My commission expires:

Notary Public

Exhibit A

Legal Description

PART OF LOT EC-2 IN TECHNY PARCELS EC-1 AND EC-2, BEING A SUBDIVISION OF PART OF THE WEST HALF OF SECTION 14, AND PART OF THE SOUTHEAST QUARTER OF SECTION 15, ALL IN TOWNSHIP 42 NORTH, RANGE 12 EAST OF THE THIRD PRINCIPAL MERIDIAN, ACCORDING TO THE PLAT THEREOF RECORDED FEBRUARY 27, 2004 AS DOCUMENT NUMBER 0405844049 DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHWEST CORNER OF SAID LOT EC-2; THENCE NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING FIVE (5) COURSES AND DISTANCES: 1) NORTH 41 DEGREES 07 MINUTES 39 SECONDS WEST, 115.77 FEET; 2) NORTH 89 DEGREES 55 MINUTES 05 SECONDS WEST, 211.02 FEET; 3) NORTH 26 DEGREES 54 MINUTES 49 SECONDS WEST, 102.88 FEET; 4) NORTH 37 DEGREES 42 MINUTES 01 SECONDS EAST, 173.60 FEET; 5) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 687.48 FEET FOR THE PLACE OF BEGINNING; THENCE CONTINUING NORTHERLY ALONG THE WESTERLY LINE OF SAID LOT EC-2 THE FOLLOWING THREE (3) COURSES AND DISTANCES: 1) NORTH 26 DEGREES 07 MINUTES 43 SECONDS WEST, 36.58 FEET; 2) NORTH 42 DEGREES 59 MINUTES 46 SECONDS WEST, 402.42 FEET; 3) NORTH 81 DEGREES 38 MINUTES 35 SECONDS WEST, 102.67 FEET; THENCE NORTH 56 DEGREES 07 MINUTES 43 SECONDS EAST, 594.75 FEET TO THE EASTERLY LINE OF SAID LOT EC-2, SAID LINE ALSO BEING THE WESTERLY LINE OF HERETOFORE DEDICATED FOUNDERS DRIVE; THENCE SOUTHERLY ALONG THE EASTERLY LINE OF SAID LOT EC-2 THE FOLLOWING TWO (2) COURSES AND DISTANCES: 1) ALONG AN ARC OF A CURVE CONCAVE TO THE EAST AND NONTANGENT TO THE LAST DESCRIBED LINE, HAVING A RADIUS OF 780.00 FEET, HAVING A CHORD BEARING OF SOUTH 22 DEGREES 31 MINUTES 41 SECONDS EAST, 401.93 FEET TO A POINT OF REVERSE CURVATURE; 2) ALONG AN ARC OF A CURVE CONCAVE TO THE SOUTHWEST, HAVING A RADIUS OF 2540.00 FEET, HAVING A CHORD BEARING OF SOUTH 36 DEGREES 00 MINUTES 59 SECONDS EAST, 112.94 FEET; THENCE SOUTH 56 DEGREES 07 MINUTES 43 SECONDS WEST ALONG A LINE NONTANGENT TO THE LAST DESCRIBED CURVE, 385.88 FEET TO THE PLACE OF BEGINNING, IN COOK COUNTY, ILLINOIS.

PIN:

Address:

04-14-305-001-0000 (portion only)

2111 Founders Drive, Northbrook, Illinois 60062.